

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

-----X
NICOLAS FERNANDEZ, CHRIS FLEMING, and ALEXIS
BRIGGIE,

plaintiffs,

SUMMONS

-against-

Jury Trial Demanded

FULTON ENTERPRISES, L.L.C, FULTON ENTERPRISES,
LLC d/b/a LIBERTY WAREHOUSE, LIBERTY EVENTS,
LLC, MICHAEL "BUZZY" O'KEEFFE, JEFFREY R.
TOREM, CITY OF NEW YORK, POLICE OFFICER
JOSEPH E. GONZALEZ (SHIELD NO. 20080), individually
and in his official capacity, and NYPD Officers JOHN and
JANE DOE 1 through 10, individually and in their official
capacities (the names John and Jane Doe being fictitious, as
the true names are presently unknown),

plaintiffs designates
Kings County as the
place of trial.

The basis
of venue
is: CPLR §
504(3)

Defendants.

-----X

To the above named Defendants:

You are hereby summoned to answer the Complaint in this action, and to serve a copy of your answer, or, if the Complaint is not served with this Summons, to serve a notice of appearance on the plaintiffs' attorney within 20 days after the service of this Summons, exclusive of the day of service, where service is made by delivery upon you personally within the state, or, within 30 days after completion of service where service is made in any other manner. In case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the Complaint.

Dated: New York, New York
November 2, 2020

Robert W. Georges
KONTA, GEORGES, & BUZA, P.C.
by: Robert W. Georges
233 Broadway, Ste. 900
New York, New York 10279
Tel. (212) 710-5166

TO:

Fulton Enterprises, LLC
c/o The River Cafe
1 Water Street
Brooklyn, New York 11201

Fulton Enterprises, LLC d/b/a Liberty Warehouse
175 Van Dyke Street, Suite 326
Brooklyn, New York 11231

Liberty Events, LLC
CORPORATION SERVICE COMPANY
80 STATE STREET
ALBANY, NEW YORK, 12207

Michael O'Keeffe
1 Water Street
Brooklyn, New York 11201

Michael O'Keeffe
Liberty Warehouse
175 Van Dyke Street, Suite 326
Brooklyn, New York 11231

JEFFREY R. TOREM
175 Van Dyke Street, Suite 326
Brooklyn, New York 11231

ZACHARY W. CARTER
Corporation Counsel of the City of New York
Attorney for Defendant
THE CITY OF NEW YORK
100 Church Street
New York, New York 10007

POLICE OFFICER JOSEPH E. GONZALEZ (SHIELD NO. 20080)
76th Precinct
191 Union Street
Brooklyn, NY, 11231-3003

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

-----X
NICOLAS FERNANDEZ, CHRIS FLEMING, and ALEXIS
BRIGGIE,

Plaintiffs,

-against-

**VERIFIED
COMPLAINT**

Jury Trial Demanded

Index No.:

FULTON ENTERPRISES, L.L.C, FULTON
ENTERPRISES, LLC d/b/a LIBERTY WAREHOUSE,
LIBERTY EVENTS, LLC, MICHAEL “BUZZY”
O’KEEFFE, JEFFREY R. TOREM, CITY OF NEW YORK,
POLICE OFFICER JOSEPH E. GONZALEZ (SHIELD NO.
20080), individually and in his official capacity, and NYPD
Officers JOHN and JANE DOE 1 through 10, individually
and in their official capacities (the names John and Jane Doe
being fictitious, as the true names are presently unknown),

**BASIS FOR VENUE:
CPLR § 504(3)**

Defendants.

-----X
Plaintiffs NICOLAS FERNANDEZ, CHRIS FLEMING, and ALEXIS BRIGGIE, by
their attorneys KONTA, GEORGES & BUZA, P.C., complaining of the defendants,
respectfully alleges as follows:

NATURE OF THE ACTION

1. Plaintiffs bring this action against FULTON ENTERPRISES, L.L.C, FULTON ENTERPRISES, LLC d/b/a LIBERTY WAREHOUSE, LIBERTY EVENTS, LLC, MICHAEL “BUZZY” O’KEEFFE, and JEFFREY R. TOREM for negligence, negligent hiring and supervision, defamation, assault and battery that occurred on or around May 18, 2019.
2. Plaintiffs also brings this action for compensatory damages, punitive damages and attorneys’ fees pursuant to 42 U.S.C. §1983 and 42 U.S.C. §1988 and the laws of the

State of New York for violations of their civil rights by Defendants POLICE OFFICER JOSEPH E. GONZALEZ (SHIELD NO. 20080), individually and in his official capacity, and NYPD Officers JOHN and JANE DOE 1 through 10, individually and in their official capacities (the names John and Jane Doe being fictitious, as the true names are presently unknown) as said rights are secured by said statutes and the Constitutions of the State of New York and the United States.

PARTIES

3. That plaintiff NICOLAS FERNANDEZ, is a resident of the County of New York, City and State of New York.
4. That plaintiff CHRIS FLEMING is a resident of the County of Kings, City and State of New York.
5. That plaintiff ALEXIS BRIGGIE is a resident of the County of Kings, City and State of New York.
6. That plaintiff ALEXIS BRIGGIE is the spouse of Plaintiff CHRIS FLEMING.
7. That Defendant Fulton FULTON ENTERPRISES, L.L.C. is a domestic limited liability company organized and existing under the laws of the State of New York and is authorized to do business in the State of New York, with a registered business address at 1 Water Street, Brooklyn, New York 11201 and is engaged in the hospitality industry as that term is used and defined in 12 NYCRR § 146.
8. That Defendant FULTON ENTERPRISES, LLC d/b/a LIBERTY WAREHOUSE maintains, manages, and controls LIBERTY WAREHOUSE, which is a catering venue and event space located at 260 Conover St., Brooklyn, NY 11231, with a mailing address of 175 Van Dyke St., Ste. 326, Brooklyn, NY 11231.

9. Defendant FULTON ENTERPRISES, LLC d/b/a LIBERTY WAREHOUSE offers catering services at LIBERTY WAREHOUSE for a wide range of social events, corporate events, and weddings. LIBERTY WAREHOUSE is located on the edge of New York Harbor in Red Hook, Brooklyn and can accommodate events up to 400 people for sit-down dinner and 1200 people for cocktails.
10. That Defendant LIBERTY EVENTS, LLC, is a domestic limited liability company organized and existing under the laws of the State of New York and is authorized to do business in the State of New York, with its headquarters and principal place located in Kings County. Defendant Liberty Events is engaged in the hospitality industry as that term is used and defined in 12 NYCRR § 146, and operates in furtherance of Defendants' FULTON ENTERPRISES, LLC, FULTON ENTERPRISES, LLC d/b/a LIBERTY WAREHOUSE business, including the operation of LIBERTY WAREHOUSE (hereinafter "FULTON DEFENDANTS").
11. That Defendant O'Keeffe is the CEO of Defendant, FULTON ENTERPRISES, LLC, and FULTON ENTERPRISES, LLC d/b/a LIBERTY WAREHOUSE. Upon information and belief, Defendant O'Keeffe is a majority owner of the FULTON DEFENDANTS and operates, manages, and controls LIBERTY WAREHOUSE's operations, including its servers, agents, and employees such as Defendant JEFFREY R. TOREM.
12. That Defendant JEFFREY R. TOREM is a director of catering at the LIBERTY WAREHOUSE, and is the servant agents and/or employee of the above named defendants.

13. That Defendant, CITY OF NEW YORK, was and is a municipal corporation duly organized and existing under and by virtue of the laws of the State of New York.
14. That Defendant, CITY OF NEW YORK, maintains the THE NEW YORK CITY POLICE DEPARTMENT, duly authorized public authorities and/or police departments, authorized to perform all functions of a police department as per the applicable sections of the New York State Criminal Procedure Law, acting under the direction and supervision of the aforementioned municipal corporation, CITY OF NEW YORK.
15. That at all times mentioned herein, POLICE OFFICER JOSEPH E. GONZALEZ (SHIELD NO. 20080) was a police officer employed by THE NEW YORK CITY POLICE DEPARTMENT.
16. That at all times mentioned herein, Defendants John & Jane Doe 1 through 10 (“Doe Defendants”) were police officers, detectives or supervisors employed by THE NEW YORK CITY POLICE DEPARTMENT. Plaintiff does not know the real names and shield and/or tax numbers of defendants John & Jane Doe 1 through 10.
17. That at all times hereinafter mentioned, the defendants, either personally or through their employees, were acting under the color of state law and/or in compliance with the official rules, regulations, laws, statutes, customs, usages and/or practices of the State and/or CITY OF NEW YORK. .
18. That each and all of the acts of the defendants alleged herein were done by said defendants while acting within the scope of their employment by defendants CITY OF NEW YORK, and THE NEW YORK CITY POLICE DEPARTMENT.

19. That each and all of the acts of the defendants alleged herein were done by said defendants while acting in furtherance of their employment by Defendants CITY OF NEW YORK, and CITY OF NEW YORK POLICE DEPARTMENT.

JURISDICTION AND VENUE

20. This action is brought pursuant to New York State Law, 42 U.S.C. Act of 1871, §§ 1983 and 1988, including its Eighth, Fourth, and Fourteenth Amendments to the Constitution of the United States, inter alia.

21. Venue is proper in this county as the transactions and occurrences were in the County of Kings, City and State of New York.

22. Plaintiff has complied with all conditions precedent to this suit.

23. A Notice of Claim was timely filed, a 50-H hearing was held on or about February 19, 2020, and the claims have not yet been adjusted or paid.

JURY DEMAND

24. Plaintiffs demand a trial by jury in this action.

STATEMENT OF FACTS

25. On or about May 18, 2019, at or around 5:20 p.m., Plaintiff NICOLAS FERNANDEZ, was lawfully within the vicinity of 175 Van Dyke Street, County of Kings, State of New York.

26. On or about May 18, 2019, at or around 5:20 p.m., Plaintiff CHRIS FLEMING, was lawfully within the vicinity of 175 Van Dyke Street, County of Kings, State of New York.

27. On or about May 18, 2019, at or around 5:20 p.m., Plaintiff ALEXIS BRIGGIE, was lawfully within the vicinity of 175 Van Dyke Street, County of Kings, State of New York.
28. That at the above date and time, plaintiffs visited the Red Hook Winery located at or around 175 Van Dyke Street, Brooklyn, New York.
29. That at the above date and time, Plaintiffs NICOLAS FERNANDEZ, and CHRIS FLEMING went outside to smoke a cigarette.
30. That while the plaintiffs were smoking, Defendant JEFFREY R. TOREM (hereinafter "TOREM") approached them and falsely accused them of touching his vehicle that was parked in the vicinity.
31. That plaintiffs told Defendant TOREM that they did not touch the vehicle. However, Defendant TOREM viciously attacked the plaintiffs without justification and without provocation on the part of the plaintiffs.
32. Specifically, Defendant TOREM punched and kicked the plaintiffs causing them to sustain serious injuries. As a result, Plaintiff NICOLAS FERNANDEZ sustained severe injuries to his knees and laceration to his body while CHRIS FLEMING sustained head contusion, and other severe injuries, *inter alia*.
33. Following the assault, Defendant TOREM falsely informed the New York City Police Officers that the plaintiffs had assaulted him.
34. That thereafter, several unidentified New York City Police Officers, including Defendant POLICE OFFICER JOSEPH E. GONZALEZ (SHIELD NO. 20080) violated plaintiff's rights, including the state and the constitutional rights to be free from use of assault and battery and use of excessive force, *inter alia*.

35. Specifically, Defendant POLICE OFFICER JOSEPH E. GONZALEZ (SHIELD NO. 20080) together with the Doe Defendants approached the plaintiffs without probable cause and forcibly assaulted them, and used excessive force against them without justification or provocation from the plaintiff. At that time, plaintiffs left the scene of the incident and were on their way to the parking lot.
36. As a result, plaintiffs sustained severe injuries, and mental distress that affect their quality of life until this day, together with injuries to their character.
37. That the Defendants FULTON ENTERPRISES, L.L.C, FULTON ENTERPRISES, LLC d/b/a LIBERTY WAREHOUSE, LIBERTY EVENTS, LLC, and MICHAEL “BUZZY” O’KEEFFE through their negligent hiring and retention of their agents, servant, and/or employees are liable under the theory of *respondeat superior* for plaintiffs’ serious injuries, including severe mental distress, and injury to their reputation and character.
38. Defendant CITY OF NEW YORK, through its unconstitutional policies, negligent training, hiring and retention of its employees, deprived plaintiff of his rights under state and federal law, and are otherwise liable under the theory of *respondeat superior* for plaintiffs’ serious injuries, and severe mental distress.

CLAIM ONE
NEGLIGENT HIRING/TRAINING/SUPERVISION/RETENTION

39. Plaintiffs repeat and reallege each and every allegation contained in the preceding paragraphs with the same force and effect as if fully set forth herein.
40. Defendants FULTON ENTERPRISES, L.L.C, FULTON ENTERPRISES, LLC d/b/a LIBERTY WAREHOUSE, LIBERTY EVENTS, LLC, and MICHAEL “BUZZY” O’KEEFFE selected, hired, trained, retained, assigned and supervised its agents, servants, and employees, including Defendant TOREM.

41. Defendants FULTON ENTERPRISES, L.L.C, FULTON ENTERPRISES, LLC d/b/a LIBERTY WAREHOUSE, LIBERTY EVENTS, LLC, and MICHAEL “BUZZY” O’KEEFFE were negligent, reckless, and careless when they selected, hired, trained, retained, assigned, and supervised its agents, servants, and employees, including Defendant JEFFREY R. TOREM.
42. Defendant CITY OF NEW YORK selected, hired, trained, retained, assigned and supervised all members of its Police Department, including the defendant individually named above.
43. Defendant CITY OF NEW YORK was negligent and careless when it selected, hired, trained, retained, assigned, and supervised all members of its Police Department including the defendant individually named above.
44. As a direct and proximate result of this unlawful conduct, plaintiffs sustained, *inter alia*, serious injuries, loss of liberty, emotional distress, mental anguish, shock, fright, apprehension, embarrassment, humiliation, deprivation of constitutional rights, pain and suffering, and injury to their reputation and character.

CLAIM TWO
ASSAULT AND BATTERY

45. Plaintiffs repeat and reallege each and every allegation contained in the preceding paragraphs with the same force and effect as if fully set forth herein.
46. Defendants’ aforementioned actions placed the plaintiff in apprehension of imminent harmful and offensive bodily contact.
47. Defendant TOREM touched the plaintiffs in a harmful and offensive manner.
48. Defendant TOREM did so without consent, provocation or justification.

49. Defendants police officers, including POLICE OFFICER JOSEPH E. GONZALEZ and the Doe Defendants touched the plaintiff in a harmful and offensive manner.
50. Defendants police officers, including the POLICE OFFICER JOSEPH E. GONZALEZ (SHIELD NO. 20080) and the Doe Defendants created a reasonable apprehension of bodily harm and/or offensive contact when they handcuffed the plaintiffs and used excessive force against them.
51. Defendants police officers did so without privilege or consent from the plaintiffs.
52. Defendants FULTON ENTERPRISES, L.L.C, FULTON ENTERPRISES, LLC d/b/a LIBERTY WAREHOUSE, LIBERTY EVENTS, LLC, and MICHAEL “BUZZY” O’KEEFFE are liable for the Defendant TOREM’s wrongdoing under the doctrine of respondeat superior.
53. Defendant THE CITY OF NEW YORK is liable for the defendants officers’ wrongdoing under the doctrine of respondeat superior.
54. As a direct and proximate result of this unlawful conduct, plaintiffs sustained, *inter alia*, loss of liberty, emotional distress, mental anguish, shock, fright, apprehension, embarrassment, humiliation, deprivation of constitutional rights, and pain and suffering, and serious personal injuries.

CLAIM THREE
DEFAMATION PER SE

55. Plaintiffs repeat and reallege each and every allegation contained in the preceding paragraphs with the same force and effect as if fully set forth herein.
56. That Defendant TOREM falsely informed the NYPD officers that the plaintiffs punched him several times with a closed fist causing him to fall and hit the ground. Defendant

TOREM also falsely informed the NYPD officers that as a result of the unprovoked attack from the plaintiffs, he sustained serious injuries, and became alarmed and annoyed.

57. That the above false statements charged the plaintiffs with a serious crime, and injured their trade, business or profession.

58. That the above false statements exposed the plaintiffs to hatred, contempt or aversion, induced an evil or unsavory opinion of them in the minds of a substantial number of the community, and imputed immoral turpitude to them.

59. As a result, the plaintiffs suffered impairment of reputation and standing in the community, personal humiliation, and mental anguish and suffering.

60. By the reason of the above, plaintiffs demand compensation in an amount which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction.

CLAIM FOUR
NEGLIGENCE

61. Plaintiffs repeat and reallege each and every allegation contained in the preceding paragraphs with the same force and effect as if fully set forth herein.

62. That the defendants had a duty of care in their interactions with the plaintiffs, they violated their duty of care, which was a direct and proximate cause in bringing about the plaintiffs' severe injuries.

63. That the defendants were negligent, reckless, gross negligent and careless when they failed to hire and supervise their servants, agents, and employees; when they negligently employed personnel such as Defendant TOREM with a known disciplinary history; and

when they were otherwise negligent and careless to ensure the safety and well being of individuals such as plaintiffs who are lawfully present at or around the vicinity of the LIBERTY WAREHOUSE.

64. That the defendants were negligent, reckless, gross negligent and careless when they failed to train its police officers, including POLICE OFFICER JOSEPH E. GONZALEZ (SHIELD NO. 20080) and other Doe Defendants in the fundamental law of arrest and use of force in effecting arrest; in fostering and encouraging a policy of use of excessive and undue force, false arrests and assaults; in fostering and encouraging a policy of systemic deficiencies in disciplining officers and investigating complaints; in failing to afford defendants the proper and special training necessary for the duties they could foreseeably be expected to perform in the course of their employment; in failing to exercise due diligence in disciplining, supervising, controlling and instructing its police officers, including POLICE OFFICER JOSEPH E. GONZALEZ (SHIELD NO. 20080) and other Doe Defendants; in keeping inaccurate police records; in failing to keep accurate records; in failing to timely update their records; in failing to properly and reasonably train, supervise, direct and control its Police Officers; and in otherwise being careless, reckless and negligent under the circumstances.

65. As a direct and proximate result of this unlawful conduct, plaintiffs sustained, *inter alia*, loss of liberty, emotional distress, mental anguish, shock, fright, apprehension, embarrassment, humiliation, deprivation of constitutional rights, and pain and suffering, and serious personal injuries.

66. By the reason of the above, plaintiffs demand compensation in an amount which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction.

CLAIM FIVE
LOSS OF SERVICES AND CONSORTIUM

67. Plaintiffs repeat and reallege each and every allegation contained in the preceding paragraphs with the same force and effect as if fully set forth herein.

68. Plaintiff ALEXIS BRIGGIE is the spouse of CHRIS FLEMING.

69. As a result of the foregoing, Plaintiff ALEXIS BRIGGIE was caused to suffer loss of services and consortium.

70. By the reason of the above, plaintiff ALEXIS BRIGGIE was injured in an amount which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction.

CLAIM SIX
MALICIOUS ABUSE OF PROCESS

71. Plaintiffs repeat and reallege each and every allegation contained in the preceding paragraphs with the same force and effect as if fully set forth herein.

72. The individual defendants issued a legal process to place the plaintiffs under arrest.

73. The Municipal Defendants used excessive force against the plaintiffs and then lied in the subsequent investigation in order to obtain collateral objectives outside the legitimate ends of the legal process.

74. The Municipal Defendants acted with intent to do harm to the plaintiffs without excuse or justification.

75. As a direct and proximate result of this unlawful conduct, plaintiff sustained, *inter alia*, loss of liberty, emotional distress, mental anguish, shock, fright, apprehension, embarrassment, humiliation, deprivation of constitutional rights, and pain and suffering.

76. By the reason of the above, plaintiffs were injured in an amount which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction.

CLAIM SEVEN
UNREASONABLE FORCE

77. Plaintiffs repeat and reallege each and every allegation contained in the preceding paragraphs with the same force and effect as if fully set forth herein.

78. The defendants violated the Fourth and the Fourteenth Amendments and the New York State Law because they used unreasonable, excessive, and unjustified force on the plaintiff.

79. As a direct and proximate result of this unlawful conduct, plaintiffs sustained, *inter alia*, loss of liberty, emotional distress, mental anguish, shock, fright, apprehension, embarrassment, humiliation, deprivation of constitutional rights, and pain and suffering.

80. By the reason of the above, plaintiffs demand compensation in an amount which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction.

CLAIM EIGHT
FAILURE TO INTERVENE

81. Plaintiffs repeat and reallege each and every allegation contained in the preceding paragraphs with the same force and effect as if fully set forth herein.

82. Those defendants that were present but did not actively participate in the aforementioned unlawful conduct observed such conduct, had an opportunity to prevent such conduct, had a duty to intervene and prevent such conduct and failed to intervene.

83. Accordingly, the defendants who failed to intervene violated the First, Fourth, Fifth, and the Fourteenth Amendments.

84. As a direct and proximate result of this unlawful conduct, plaintiffs sustained, *inter alia*, loss of liberty, emotional distress, mental anguish, shock, fright, apprehension, embarrassment, humiliation, deprivation of constitutional rights, and pain and suffering.

85. By the reason of the above, plaintiffs demand compensation in an amount which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction.

CLAIM NINE
INTENTIONAL INFLICTION OF EMOTIONAL DISTRESS

86. Plaintiffs repeat and reallege each and every allegation contained in the preceding paragraphs with the same force and effect as if fully set forth herein.

87. By reason of the foregoing conduct herein alleged, Defendant TOREM committed a conduct so extreme and outrageous as to constitute the intentional infliction of emotional distress upon the plaintiffs.

88. The intentional infliction of emotional distress by Defendant TOREM was unnecessary and unwarranted in the performance of their duties as police officers.

89. Defendants FULTON ENTERPRISES, L.L.C, FULTON ENTERPRISES, LLC d/b/a LIBERTY WAREHOUSE, LIBERTY EVENTS, LLC, MICHAEL “BUZZY” O’KEEFFE ,their officers, agents, servants, and employees were responsible for the intentional infliction of emotional distress upon the plaintiffs.

90. By reason of the foregoing conduct herein alleged, each defendant committed a conduct so extreme and outrageous as to constitute the intentional infliction of emotional distress upon the plaintiffs.
91. The intentional infliction of emotional distress by the CITY OF NEW YORK, POLICE OFFICER JOSEPH E. GONZALEZ (SHIELD NO. 20080) and each of the Doe Defendants was unnecessary and unwarranted in the performance of their duties as police officers.
92. Defendants, their officers, agents, servants, and employees were responsible for the intentional infliction of emotional distress upon the plaintiffs.
93. Defendant CITY OF NEW YORK as employer of POLICE OFFICER JOSEPH E. GONZALEZ (SHIELD NO. 20080) and each of the Doe Defendants is responsible for their wrongdoings under the doctrine of respondeat superior.
94. As a direct and proximate result of this unlawful conduct, plaintiffs sustained, *inter alia*, loss of liberty, emotional distress, mental anguish, shock, fright, apprehension, embarrassment, humiliation, deprivation of constitutional rights, and pain and suffering.
95. By the reason of the above, plaintiffs were injured in an amount which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction.

CLAIM TEN
NEGLIGENT INFLICTION OF EMOTIONAL DISTRESS

96. Plaintiffs repeat and reallege each and every allegation contained in the preceding paragraphs with the same force and effect as if fully set forth herein.

97. By the reason of the foregoing conduct herein alleged, and failing to prevent other defendants officers from doing so, each defendant committed a conduct that inflicted emotional distress upon the plaintiff .
98. That the negligent infliction of emotional distress by the defendants was unnecessary and unwarranted in the performance of their duties as police officers.
99. Defendants, their officers, agents, servants, and employees were responsible for the negligent infliction of emotional distress upon the plaintiffs.
100. Defendants FULTON ENTERPRISES, L.L.C, FULTON ENTERPRISES, LLC d/b/a LIBERTY WAREHOUSE, LIBERTY EVENTS, LLC, MICHAEL “BUZZY” O’KEEFFE, as employers of JEFFREY R. TOREM, CITY OF NEW YORK as employer of POLICE OFFICER JOSEPH E. GONZALEZ (SHIELD NO. 20080) and each of the Doe Defendants is responsible for their wrongdoings under the doctrine of respondeat superior.
101. As a direct and proximate result of this unlawful conduct, plaintiffs sustained, *inter alia*, loss of liberty, emotional distress, mental anguish, shock, fright, apprehension, embarrassment, humiliation, deprivation of constitutional rights, and plain and suffering.
102. By the reason of the above, plaintiff's demand compensation in an amount which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction.

CLAIM ELEVEN
DEPRIVATION OF FEDERAL RIGHTS

103. Plaintiffs repeat and reallege each and every allegation contained in the preceding paragraphs with the same force and effect as if fully set forth herein.
104. All of the aforementioned acts of defendants, their agents, servants and employees, were carried out under the color of state law.
105. All of the aforementioned acts deprived the plaintiffs of the rights, privileges and immunities guaranteed to citizens of the United States by the Fourth and Fourteenth Amendments to the Constitution of the United States of America, and in violation of 42 U.S.C. § 1983.
106. The acts complained of were carried out by the aforementioned individual defendants in their capacities as police officers with all the actual and/or apparent authority attendant thereto.
107. The acts complained of were carried out by the aforementioned individual defendants in their capacities as police officers, pursuant to the customs, usages, practices, procedures, and the rules of CITY OF NEW YORK and CITY OF NEW YORK POLICE DEPARTMENT, all under the supervision of ranking officers of said department.
108. Defendants, collectively and individually, while acting under color of state law, engaged in conduct which constituted a custom, usage, practice, procedure or rule of the respective municipality/authority, which is forbidden by the Constitution of the United States.

109. As a direct and proximate result of this unlawful conduct, plaintiffs sustained, *inter alia*, loss of liberty, emotional distress, mental anguish, shock, fright, apprehension, embarrassment, humiliation, deprivation of constitutional rights, and pain and suffering.
110. By the reason of the above, plaintiffs demand compensation in an amount which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction.

CLAIM TWELVE
MUNICIPAL LIABILITY

111. Plaintiffs repeat and reallege each and every allegation contained in the preceding paragraphs with the same force and effect as if fully set forth herein.
112. Defendants, collectively and individually, while acting under color of state law, engaged in conduct that constituted a custom, usage, practice, procedure or rule of the respective municipality/authority, which is forbidden by the Constitution of the United States.
113. The aforementioned customs, policies, usages, practices, procedures and rules of the City of New York and the New York City Police Department include, but are not limited to, the following unconstitutional practices:
- a. arresting individuals regardless of probable cause in order to inflate the officer's arrest statistics;
 - b. arresting innocent persons notwithstanding the existence of credible evidence, which exonerates the accused of any criminal wrongdoing;
 - c. using unnecessary excessive force;

- d. fabricating evidence in connection with their prosecution in order to cover up police misconduct; and
 - e. fabricating evidence in connection with investigations of misconduct in order to avoid repercussions;
- 114. The foregoing customs, policies, usages, practices, procedures and rules of CITY OF New York and CITY OF New York POLICE DEPARTMENT constituted deliberate indifference to the safety, well-being and constitutional rights of the plaintiffs .
- 115. The foregoing customs, policies, usages, practices, procedures and rules of CITY OF New York and CITY OF NEW YORK POLICE DEPARTMENT were the direct and proximate cause of the constitutional violations suffered by the plaintiffs as alleged herein.
- 116. The foregoing customs, policies, usages, practices, procedures and rules of CITY OF New York and CITY OF NEW YORK POLICE DEPARTMENT were the moving force behind the constitutional violations suffered by the plaintiffs as alleged herein.
- 117. Defendants, collectively and individually, while acting under color of state law, were directly and actively involved in violating plaintiffs' constitutional rights.
- 118. Defendants, collectively and individually, while acting under color of state law, acquiesced in a pattern of unconstitutional conduct by subordinate police officers, and were directly responsible for the violation of plaintiffs' constitutional rights.
- 119. The acts complained of deprived the plaintiffs of their rights:
 - a. not to be deprived of liberty without due process of law;
 - b. to be free from seizure and arrest not based upon probable cause;
 - c. not to have summary punishment imposed upon them; and

d. To receive equal protection under the law.

120. As a direct and proximate result of this unlawful conduct, plaintiffs sustained, *inter alia*, loss of liberty, emotional distress, mental anguish, shock, fright, apprehension, embarrassment, humiliation, deprivation of constitutional rights, and pain and suffering.

121. As a result of the foregoing, plaintiffs were damaged in an amount that exceeds the jurisdictional limits of all other courts which would otherwise have had jurisdiction and asks for an award of money damages as a just compensation.

WHEREFORE, plaintiffs respectfully request judgment against defendants as follows:

- a. an order awarding compensatory damages in an amount to be determined at trial;
- b. an order awarding punitive damages in an amount to be determined at trial;
- c. reasonable attorneys' fees and costs under 42 U.S.C. § 1988; and
- d. directing such other and further relief as the Court may deem just and proper, together with attorneys' fees, interest, costs and disbursements of this action.

DATED: New York, New York
October 30, 2020

Robert W. Georges

KONTA GEORGES & BUZA, P.C.

By: Robert W. Georges, Esq.

233 Broadway, Ste. 900

New York, New York 10279

Tel. (212) 710-5166

ROBERT W. GEORGES, an attorney duly admitted to practice law in the Courts of the State of New York, shows:

That he is the attorney for the plaintiffs in the within entitled action.

That your deponent has read the foregoing **VERIFIED COMPLAINT** and knows the contents thereof, and that the same is true to his own knowledge, except as to the matters therein stated to be alleged upon information and belief, and as to those matters, he believes it to be true.

That the source of the deponent's information are investigation and records in the file.

That the reason why the verification is made by the deponent and not by the plaintiffs is that the plaintiffs are not within the county wherein the deponent maintains his office.

Deponent affirms that the foregoing statements are true under the penalties of perjury.

Dated: New York, New York
October 30, 2020

Robert W. Georges

ROBERT W. GEORGES, ESQ